

Chapter – 6: The Parliamentary System: Legislature and Executive

The Constitution is not a mere lawyer's document; it is a vehicle of life, and its spirit is always the spirit of the age. – Alladi Krishnaswami Ayyar, November 1949, Constituent Assembly Debates

- Grade 8 student – Nalanda Vidyalaya – school trip – Delhi
- Usha, Sukhwinder, Anjali, John, Farida – especially excited – visit – new Parliament building
 - Student – not sq., round – BUT – soft triangle
 - Teacher – 3 side design – balance, inclusivity, purpose – also – green construction – cutting elec. use by 30%
 - Inside – wall decorations – peacocks, lotus, tribal art, temple patterns, freedom fighters – carvings
 - Student – feels – museum
 - Student – spot – Ashokan emblem
 - Student – new building – many – ancient symbols
 - Teacher – democracy – look ahead – BUT – never forget – roots

Introduction

- India – independence – achieved – great sacrifices – many people – struggle – yrs. – colonial rule
- Citizens – free country – make decisions – own governance
- 1st imp. step – new period – our nation – drafting – Constitution – independent India
- This doc. – foundational principles – nation – incl. – universal adult franchise – guarantee – all adult citizens – right to vote – no matter – social, economic background – gender, race, religion
- People – India – direct election – representative – member – Lok Sabha
- Majority grp. – elected representatives – form govt.
- Parliament – supreme legislative body – govt. – makes laws
- Comprise – all elected representatives – control, guide – work – govt.
- Govt. – seen – func. – people's consent
- 17 Lok Sabhas – 1st one – 1952 – 18th Lok Sabha – constituted – June 2024

Composition of the Parliament of India

- Indian Parliament – President, 2 houses – Lok Sabha (House of people / Lower House) – Rajya Sabha (Council of states / Upper House)
- This sys. – 2 houses – bicameral
- Extensive discussions – making – Constitution – whether – India – bicameral sys.
- Felt – single directly elected house – inadequate – challenges – independent India – face
- Spirit – federalism – felt – Council of states – Rajya Sabha – needed
- Composition, process of election – very diff. – Rajya Sabha
- India – federalism – type – govt. – power – distributed – centre, state, local govt.
- This sys. – help – keep balance – national unity – local interests

Function

- Each House – Parliament – presiding officer – ensure – debates, discussions – orderly manner

- Lok Sabha – members – elect speaker – conduct session – allow members – speak – maintain discipline – ensure – rules – followed
- Rajya Sabha – presided by – Vice President – chairperson
- Help – Parliament discussions – accessible – all – translation services – multiple Indian lang.
- Simultaneous interpretation – available – 12 lang. – Hindi, English, Assamese, Bengali, Gujarati, Kannada, Malayalam, Marathi, Odia, Tamil, Punjabi, Telugu – recent times – 6 lang. – added – Bodo, Dogri, Maithili, Manipuri, Urdu, Sanskrit
- Executive responsibility – Parliament – ensure – laws – implemented, enforced – as IMP. as – legislative func. – making laws
- Union Executive – life – legislative func., power – Parliament
- Union Executive – members –
 - President
 - Vice President
 - Council of Ministers – head – Prime Minister
- Council – Ministers – chosen – MPs – both houses – Parliament
- These ministers – responsible – collectively – Lok Sabha

Legislative Functions of the Parliament

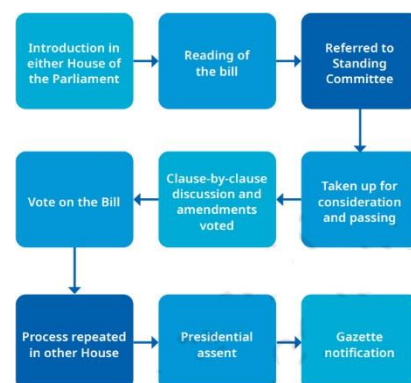
- Constitution – lays down – key func. – Parliament – broadly classified – following heads

Constitutional function

- Parliament – entrusted – upholding – core values – Indian Constitution – incl. –
 - Enable parliamentary democracy – universal adult suffrage
 - Follow – separation – powers – legislature, executive, judiciary
 - Ensure – federalism
 - Uphold – Fundamental Rights – Directive Principles of State Policy – frame – laws, policies

Lawmaking

- Primary responsibility – legislature – make laws
- Constitution – laid out – elaborate, rigorous process – lawmaking
- Law – into force – instrument – **act**
- **Bill** – draft – proposed law – introduced – Parliament – long, effortful journey – before becoming act
- Given below – journey – bill – act – law – case – Right of Children to Free and Compulsory Education Act, 2009 (RTE)
 - RTE – existence – Aug 2009 – idea – beginning – cent. before
 - Roots – Directive Principles of State Policy – Indian Constitution
 - Constitution makers – implement – decade after independence – didn't happen – countless children – no access – education
 - Early 1990s – someone argue – court – RTE – inherent part – Fundamental Rights – Right to Life – education – imp. – meaningful life
 - Parliamentary action – some yrs. later – intro. – 86th Constitutional Amendment Act, 2002 – mandated – Article 21A – state – provide – free education – all children – ages – 6-14 yrs.



- 6 yrs. later – tabled – bill – Rajya Sabha – committee – thorough study – suggest modifications
- Major debate – funding – new schools, infra., teachers – children – millions – costly
- 2009 elections – govt. – pursue matter – August 2009 – passed – Lok Sabha – President's assent – became act
- Today – enabled – creation – legal pathways – children – attend school – new schools – ensure – free books, uniforms
- **Reading** – origins – British Parliament – MPs – illiterate – clerk – read out content – MPs – discuss – today – MPs – read before discussions
- **Clause** – parts – bill – explain – specific details – ex. – RTE – define age grp. – 6-14 yrs.
- **Gazette** – official govt. publication – announce – legal doc. – official info.

Executive accountability

- Prime Minister, Council of Ministers – part – Union Executive
 - Primarily responsible – implement, enforce laws – oversee – effective running – govt.
 - Take decisions – day-to-day func. – govt. – based on – principles – Constitution, laws
 - Answerable – Lok Sabha – mechanisms – Ques. Hr. – req. ministers – justify actions, decisions
 - Ques. Hr. – Lok Sabha – select period – MPs – ask ministers – ques. – govt. policies, activities
 - This process – Parliament – hold – executives – accountable
 - Special committees – hold meetings – ministries – explain, answer ques. – their policies
 - These committees – include MPs – diff. political parties
- Parliament – not always formal – sometimes – atm. – poetry, humour –
 - **Verse in the Parliament**
 - Presenting Union Budget – 2025-26 – 1st Feb. 2025 – Smt. Nirmala Sitharaman – recited – following verse – *Tirukkural* – ancient Indian treatise – Tamil – ethics, morality –
 - *Vaanokki vaalum Ulakellam, Mannavan koalnokki vaalung kudi*
 - It means –
 - *Just as living beings live expecting rains, Citizens live expecting good governance*
 - Hearing this – enthusiastic thumping – desks – treasury benches
 - **Humour in the Parliament**
 - 2011 – spirited debate – Lok Sabha – Parliamentarian Sushma Swaraj – quote – poetic verse – criticize govt. –
 - *Tu idhar udhar ki na baat kar, yeh bata ki kafila kyu luta, humein rahjano se gila nahi, teri Rahbari ka sawal hai*
 - It means –
 - *Don't change the topic, just say why the caravan was looted. We have no problems with the robbers, but this is a question on your leadership*
 - In response – then Prime Minister – Dr. Manmohan Singh – replied – another line –
 - *Maana ki teri deed ke qabil nahin hon main, tu mera shauq dekh mera intezar dekh*
 - It means –
 - *I admit that I am not worthy of your sight; you should look at my zeal and my perseverance*

Financial accountability

- Parliament – approves, monitors – govt. expenditure – annual budget – examine distribution – diff. ministries

- Govt. – expected – provide – necessary info. – Parliament – timely, accurate manner

Executive Functions of Parliament

- Uncovered – few points – role – executive – previous sections – look – more closely

The President

- President – Head of State – nominal head – Executive
- Prime Minister, Council of Ministers – responsible – running govt.
- President – appoints – Prime Minister, other ministers – summons – Parliament – assent bills – also – other func.
- Council of Ministers – aid, advise – President
- Specific circumstances – President – exercise discretionary powers – political crises – no party – clear majority – Lok Sabha election

The Prime Minister and the Council of Ministers

- Prime Minister – de facto – executive authority – India's Parliamentary sys.
- President – appoints leader – majority, coalition party – Lok Sabha – Prime Minister
- PM – serve – support – majority – MPs – Lok Sabha
- PM's key func. –
 - Lead – Council – Ministers
 - Coordinate – work – diff. ministries
 - Advise – President
 - Shape – national policies
- PM, Council of Ministers – make decisions – run govt.
- Responsible – collectively – Lok Sabha
- Most bills – Parliament discussions – initiated by govt.
- Permanent grp. – officials – civil servants – help implement – laws, policies
- These officers – administrators, bureaucrats – work – under dir. – ministers – ensure – govt. dept. – func. properly
- Differences between the legislature and the executive**

Aspect	Legislature	Executive
Composition	Parliament – India – supreme legislative body – country – President, Lok Sabha, Rajya Sabha	Executive – President, Vice-President, council – ministers – head – PM
Main Role	Make laws – oversee – work – Executive	Enforce law – made by Legislature
Functions	Introduce some bills – Parliament	Most bills – intro. – executive – Parliament
	Keep check – act. – executive – asking ques. – seek explanation	Provide info., explanation – legislature – decisions, actions – aid, advise – President – imp. matters – incl. – calling sessions
	Sanction – govt.-related expense	Prepare, implement – budget – approved by Parliament
	Consult – diff. committees	Func. independent – day-to-day matters – consult committees – as req.

The Judiciary – Role of Checks and Balances

- Judiciary – branch – govt. – responsible – interpret, apply – laws of land – disputes
- Judiciary – func. – sys. – courts – plays – pivotal role – maintain – democratic nature – society, governance
- Judiciary – custodian – Constitution – ensure – all branches – govt. – operate within – principles, parameters – enshrined – Constitution
- Keeps check – effective func. – society, institutions – govt. – interpret laws – resolve disputes – safeguard fundamental rights
- Constitution – describes – Legislature, Executive – given power – govern country – BUT also – lists – specific responsibilities – these organs
- Judiciary – unique, critical responsibility – check – laws passed – do not violate – Constitutional framework – ensure – powers – Legislature – used properly – responsibilities – followed
- Violation – Constitution – laws – implemented – Executive – Judiciary – power – step in
- Parliament – func. – Legislature, Executive arms – Judiciary func. – Courts
- This chapter – we explored – organs – Parliament – balance – lawmaking, execution – Judiciary – checks action
- All these – ex. – separation of powers – sys. – check, balance – Legislature, Judiciary, Executive – ensure – no 1 organ – too powerful

Legislative and Executive Functions at the State Level

- Union govt. – Parliament – legislative, executive func.
- Similar – each state – own legislature, executive – State Assembly
- Parliament – MPs – make laws – similarly – State Assembly – MLAs – formulate laws – sub. – State list, Concurrent list
- **Union list, State list, Concurrent list**
 - Constitution – lists – help clarify – areas – Union, State govt. – exclusive legislature – Union list, State list
 - Also – Concurrent list – sub. – both govt. – legislate
 - Union govt. – legislates – sub. – Concurrent list – state govt. – bound – follow it
 - RTE – ex. – Act – applicable – all over India – education – Concurrent list
- **Parallel Structure of Union and State Governments in India**

Feature	Union Govt.	State Govt.
Constitutional head	President of India – elected – electoral college	Governor of state – appointed – President
Term of office (head)	5 yrs.	5 yrs.
Executive head	Nominal head – President – BUT – PM – <i>de facto</i> – executive authority – centre	Nominal head – Governor – BUT – CM – <i>de facto</i> – executive authority – state
Selection of executive	Leader – major party / coalition – Lok Sabha	Leader – major party / coalition – Vidhan Sabha
Council of ministers	Selected – PM	Selected – CM
Responsibility	Responsible – Lok Sabha	Responsible – Vidhan Sabha

Legislature structure	Bicameral – Lok Sabha, Rajya Sabha	Unicameral – Vidhan Sabha Bicameral – Vidhan Sabha, Vidhan Parishad
Lower House	Lok Sabha (House of People)	Vidhan Sabha (Legislative Assembly)
Upper House	Rajya Sabha (Council of States)	Vidhan Parishad (Legislative Council) – some states only
Term of Lower House	5 yrs.	5 yrs.
Presiding Officer (Lower House)	Speaker	Speaker
Legislative powers	Make laws – sub. – Union, Concurrent list	Make laws – sub. – State, Concurrent list
Financial powers	Money bills – originate – Lok Sabha	Money bills – originate – Vidhan Sabha

Structures of State Legislatures

- Unlike centre – state legislatures – unicameral, bicameral
- Legislative assembly – *Vishan Sabha* – legislative council – *Vidhan Parishad*
- States – bicameral – Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, Uttar Pradesh – rest – unicameral

Challenges to the Effective Functioning of the Legislatures

- Discussed earlier – Indian legislature – critical, vital role – enact laws – oversee admin. – approve budget
- Also provide – platform – discuss national policies, development plans, international rel. – address public grievances
- Legislature – several challenges – effective func.
- Some – regular absenteeism, non-cooperative conduct – members – reduced quality – imp. debates – disruption – ques. hr.
- Parliament – meet – 3 times a yr.
- These meetings – sessions – Budget, Monsoon, Winter
- Each sitting – Parliament – meet – discuss – proposed laws – imp. matters – governance – seek explanations – Executives – decisions, actions
- Parliament session – 6 hr. / day – extended – special occasions – some work – need to finish
- State Assemblies – similar schedule
- Parliament, State Assemblies – envisioned – space – thoughtful debates, discussions – laws made – interest – people
- Debates – disrupted – sessions – cut short – some bills – yrs. – discuss, pass – matter of concern
- Concerns – expressed – sections of society – substantial proportion – representatives – Lok Sabha – criminal cases – many sessions – marked by – angry, biased debates – do not address – issues of people
- Media – imp. role – communicate concerns – electorate
- Cartoons – express them – humour – practice – common – all healthy democracies
- Democracy – stronger – citizens – informed, engaged
- Asking ques. – sharing views – participate – public discussions – people – help shape – better policies

- Best way – overcome challenge – legislature – ensure – more citizens – stay informed – imp. matters – participate – discussions – public debate – digital spaces – various govt. dept. – offer – policymaking process – engage – representatives – policies
- Many more young leaders – diverse voices – enter public life – tech. – easier – stay connected, involved – governance
- Future voters – your choices, participation – key role – strengthen Parliament, assembly – ensure – serve all people